

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

RESPONDENTS' REVISED MOTION FOR CONFIDENTIAL TREATMENT

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”) respectfully move for confidential treatment of the confidential portions of the Attachments to their Motion to Dismiss, pursuant to Rule 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5(b). This revised motion supersedes the confidentiality motion filed when the Motion to Dismiss and Attachments were filed confidentially last week, to reflect the agreement of Complainant China United Lines Ltd. that that portions of those Attachments cited in the Motion to Dismiss need not be maintained as confidential, which will also allow the Motion itself to be filed on the public docket fully unredacted.

Good cause exists for the confidential treatment of the above information as Attachments A-C are a service contract and related agreements between the parties that contain sensitive commercial information that were the result of confidential business negotiations between the parties. Attachment E is a Request for Arbitration filed with the Shanghai International Arbitration

Center whose rules provide for confidentiality as agreed or ordered. The parties have agreed for the convenience of the parties, Your Honor, and the Commission going forward that the portions of those Attachments cited in the Motion to Dismiss, which do not contain any commercially sensitive or other confidential information, need not be redacted, and the Motion itself can be filed fully unredacted.

Pursuant to Rule 502.5(a)(2)(ii), Respondents are today filing a public version of the Attachments, redacted to remove the confidential information that the parties have agreed to continue to seek to protect as commercially-sensitive information that should not be publicly available. Respondents therefore request confidential treatment of the following;

1) Attachment A, the Main Transportation Agreement

Page 9 through page 17, line 4

Page 17, line 9 (starting with (b)), through page 25, line 18 (through 3(4))

Page 25, line 31 (starting with 5) through page 29 (end).

2) Attachment C, the Work Order

Page 1, line 9 (starting with 1) through page 2, line 7 (through (5))

Page 2, line 14 (starting with (b)) through page 5, line 31 (through (5)(b))

Page 6 line 1 through page 16 line 10 (through (3))

Page 17, line 1 through page 25 (end), except for Schedule 3, sections 9(a)(iii), (x) and 9(b).

3) Attachment E, the Request for Arbitration

Page 2

Page 3, line 27 (starting with 7) through page 5, line 14 (through 15)

Page 5, line 26 (starting with Arbitration agreement 18) through page 7 (end),
except for the signature block

Respondents do not request confidential treatment of any portion of the Motion to Dismiss..

Pursuant to Rule 502.5(a), and the Initial Order in this case, Respondents will provide to Chief Judge Wirth revised confidential versions of the Attachments with the portions remaining confidential shown highlighted in yellow.

WHEREFORE, Respondents respectfully request that the portions of the Attachments to Respondents' Motion to Dismiss designated as confidential be considered confidential, and that a public version of the Attachments redacted of this confidential information be placed on the docket as the public version.

Respectfully submitted,

____ / s_ John Longstreth ____
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Counsel for Respondents

March 31, 2025

CERTIFICATE OF SERVICE

I certify that on this 31st day of March, 2025 the aforesaid motion has been filed electronically with the Secretary, with a copy to judges@fmc.gov and to the following parties of record, as provided by the Initial Order in this proceeding.

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_____/ s_ / John Longstreth_____
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